

HOUSE No. 2748

The Commonwealth of Massachusetts

PRESENTED BY:

Bruce J. Ayers

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to option (D) beneficiaries.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Bruce J. Ayers</i>	<i>1st Norfolk</i>	<i>1/15/2025</i>

HOUSE No. 2748

By Representative Ayers of Quincy, a petition (accompanied by bill, House, No. 2748) of Bruce J. Ayers relative to option (D) survivor allowance beneficiaries. Public Service.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 2431 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to option (D) beneficiaries.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Section 12 of chapter 32 of the General Laws, as appearing in the 2020 Official Edition,
2 is hereby amended by striking out the paragraph, in lines 154 to 160, inclusive, and inserting in
3 place thereof the following paragraph: -

4 Option (D), Member Survivor Allowance. — At any time, a member, upon his written
5 notice

6 on a prescribed form filed with the board prior to his or her death, may nominate one or
7 more eligible beneficiaries as set forth under option (c) of this section, who if such member dies
8 before being retired, shall receive a portion, as specified on said form, of the yearly amount of
9 the option (c) allowance to which such member would have been entitled had his retirement taken
10 place on the date of his death; provided that, in the event that multiple beneficiaries are

11 nominated, the benefit will be calculated using the youngest beneficiary's age at the time of the
12 member's death; provided further, that upon the death of a beneficiary, said beneficiary's portion
13 shall be divided equally among surviving beneficiaries.